

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 14, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna and Mr. Valdez. ABSENT: Dr. Rinne, Mr. Shanor and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. Mayor Kaysen recognized members of the Mighty Eagles 4-H Club present at the meeting and requested they lead the recitation of the pledge of allegiance.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Allen moved to approve Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on March 24, 2014. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Luna. Council inquiry was made concerning vouchers payable to the following: BT Real Estate (property value assessment), Gary's Paint and Restoration Performance (repair work on 2 vehicles), Clerk of District Court (payment for evidence received affiliated with a settled court case), Elwood Staffing (temporary labor for West Side Story Civic Center production), Bob Bradshaw (reimbursement, as the Division Head, to the Parking Division's petty cash fund for lot refunds), and Holland & Hart (outside legal services to represent the City in a Wyoming State Bar complaint). Providing information available in response to the inquiry were Rick Parish, Parks and Recreation Director; Vicki Nemecek, Assistant Director, Public Works; Lois Huff, City Treasurer, and Mayor Kaysen. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input for a transfer of location for a microbrewery permit application filed with the City Clerk's Office for Freedom's Edge Brewing Co., LLC d/b/a Freedom's Edge Brewing Co., 1509 Pioneer Avenue, Cheyenne, Wyoming (license currently held by Freedom's Edge Brewing Co., LLC d/b/a Freedom's Edge Brewing Co., 301 W. 16th Street, Cheyenne, Wyoming). There being no comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

Mayor Kaysen opened a public hearing for Fiscal Year 2014-2015 Annual Action Plan, City of Cheyenne Community Development Block Grant (CDBG) entitlement. Deanne Widauf, Housing and Community Development Office, provided a brief overview of the history and purpose of the CDBG program, noting the City has received entitlement grant funds since 1975. She advised the proposed plan is consistent with the 5 year Comprehensive Consolidated Plan completed in 2010, and stated the anticipated allocation funding amount is \$406,045.00, which is 8% less than last year. Ms Widauf explained the grant application process, public notifications and opportunities for input, and role of the Advisory Council in reviewing and recommending projects to be funded. She stated six projects are proposed under the categories of public services and general services, and noted funding for program administration. She reviewed the projects and funding amounts as recommended by the Advisory Council. There being no further comments and input, and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

Mayor Kaysen opened a public hearing to receive comments and input for a bar and grill liquor license application filed with the City Clerk's Office, for WRCH-Cheyenne, Inc. d/b/a Wyoming's Rib and Chop House, 400 W. Lincolnway, Cheyenne, Wyoming. Upon inquiry, Preston Chiasson, applicant, clarified the application is for a new bar and grill liquor license, not a transfer of an existing license. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), to provide for an Alternative Compliance for reduced residential minimum front setback -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Providing for the review and approval of the South Cheyenne Water & Sewer District's Federal Mineral Royalty Capital Construction Account Grant Application before the Wyoming State Loan and Investment Board for the Sanitary Sewer Parallel Main Extension (Prosser) Project. (#5580)

[CA] RESOLUTION - Declaring as surplus a City-owned property legally described as Lots 1 and 2, Block 15, Roberts Place, an addition to the City of Cheyenne, Laramie County, Wyoming (generally located at the southwest corner of O'Neil Avenue and West 5th Street), together with improvements thereon, and authorizing formal appraisal of the property and the City's Purchasing Director to proceed with the sale of said property pursuant to Wyo. Stat. § 15-1-112. (#5581)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Approving the City of Cheyenne's 2014-2015 Annual Action Plan prepared by the Cheyenne Housing and Community Development Office -- referred to Finance Committee (sponsors -- Ms. Broyles and Mr. Cook).

[CA] RESOLUTION - Authorizing the Mayor to enter into an "As Is" Collective Labor

Agreement with I.A.F.F. Union Local # 279 for Fiscal Year 2015 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Rescinding Resolution No. 3451 and establishing a new schedule of fees, charges and expenses as required by Section 1.3.7. of the Cheyenne Unified Development Code -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Amendment to Resolution No. 5505 authorizing the Mayor and City Clerk to enter into a Settlement Agreement and Re-Development Agreement with 19th and Converse, LLC, a Colorado Limited Liability Company, to settle all remaining issues relating to the acquisition of right-of-way for the re-construction of the Converse Avenue/Pershing Boulevard/19th Street intersections, and approving, as a condition of settlement, the trade of certain real property owned by the City to 19th and Converse, LLC, described as Lots 30 and 31, Block One, Eastridge Addition, together consisting of approximately 17,361 square feet, and having an assessed value of \$81,590.00, in exchange for certain real property owned by 19th and Converse, LLC, consisting of approximately 9,504 square feet of land, being a portion of Lots 1 and 2, Ruth Addition, having an appraised value between \$190,080.00 and \$237,600.00, both properties being located at or near the Converse Avenue/Pershing Boulevard/19th Street intersections, Cheyenne, Wyoming -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Preliminary Plat for the Pointe, Eighth Filing, a replat of Lot 14, Block 8, The Pointe, Fifth Filing, Cheyenne, Wyoming (located west of and adjacent to Powderhouse Road, between Dorothy Lane and Michael Evans Avenue) -- referred to Public Services Committee.

[CA] Part-time Employment Agreement with Ronn J. Jeffrey to act as the Juvenile Court Judge to provide juvenile offender diversion services through the City of Cheyenne Municipal Court. Motion (per Consent Agenda) carried (in an amount not to exceed \$21,355.36). (#6150)

[CA] Professional Services Agreement between the City of Cheyenne, Engineering Department, and Short Elliott Hendrickson, Inc., for engineering design and construction management services for the 19th Street Rehabilitation Project (2011 - 2014 1% Sales Tax, BOPU Funds) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Municipal Court, and Laramie County Sheriff's Department and Laramie County, Wyoming, for Municipal Court security services -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Engineering Department, and Tetra Tech, Inc., for Digital Orthoimagery and Topographic Mapping (GIS Cooperative)-- referred to Finance Committee.

[CA] Business Ready Community Grant and Loan Program Grant Agreement between the Wyoming Business Council and the City of Cheyenne for \$2,000,000 to construct a portion of rail infrastructure in the Swan Ranch Industrial Park -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County School

District No.1 for School Resource Officers for summer school 2014 -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the City of Casper, Police Department, for law enforcement extraterritorial assistance -- referred to Finance Committee.

[CA] User Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Stampede Junior "A" Hockey, LLC, to host the 2014 - 2016 seasons at the City-owned Ice and Events Center -- referred to Finance Committee.

[CA] Media Sales Agency Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Stampede Junior "A" Hockey, LLC, for Static Visual Advertising at the City-owned Ice and Events Center -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Parks and Recreation Department, and Empire Builders, LLC, for financial contributions to be used for future improvements to the David R. Romero South Cheyenne Community Park -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5824 between the City of Cheyenne, Solid Waste Division, and Tatooine Electronic Systems, Inc., for recycling of electronic waste received at the Felix Pino Transfer Station Waste Facility and Happy Jack Landfill (Solid Waste Fund) -- referred to Finance Committee.

[CA] Contract Modification No. 5 to Contract No. 5496 between the City of Cheyenne, Engineering Department, and Ayres Associates, to add additional construction Administration for the East Pershing Boulevard Reconstruction Project (Phase IV) (2003-2006, 2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funds) -- referred to Finance Committee.

[CA] Contract Modification No.1 to Contract No. 6102 between the City of Cheyenne, Parks and Recreation Department, and Waterford Corporation, for the completion of the fencing at Pioneer Park Baseball Field (Park Project Funds) -- referred to Finance Committee.

Amendment to Contract Modification No.1 to Contract No. 6041 between the City of Cheyenne, Parks and Recreation Department, and AP Wyoming, LLC, for an Owner and Construction Manager At Risk (CMAR) Guaranteed Maximum Price Agreement (GMPA) for the Municipal Pool and Expansion Project (1% Specific Purpose Sales & Use Tax, Menard property sale proceeds) -- referred to Finance Committee. Reporting for Finance Committee, Mr. Brown advised due to timing involving construction of the project, the item was discussed under other items for the agenda at Finance Committee and provisions of Title 2 of City Code had been met. Mr. Brown moved to approve, seconded by Mr. Valdez. Todd Feezer, Assistant Director, Parks and Recreation Department, explained the GMPA is provided for within the initial contract and the agreement will allow construction to proceed for the budgeted amount of \$6,343,568.00. Motion carried. Voting "yes" -- all members of the governing body present. (#6041)

Consideration of Bid #M-14-14 for a contract between the City of Cheyenne, Engineering Department, and Reiman Corporation & Subsidiary of Cheyenne, Wyoming, for the West

Lincolnway Streetscape project (State & Local Grants, Miscellaneous Federal Grants). Mr. Brown moved to reject the bid submitted by Reiman Corporation & Subsidiary of Cheyenne in the amount of \$730,270.01, seconded by Ms. Broyles. Mr. Allen raised a point of order inquiring whether discussion from the public had been called for on the item with Mayor Kaysen confirming inquiry for discussion from the public had been made. Motion carried. Voting “yes” -- all members of the governing body present.

[CA] Consideration of Bid #R-11-14 for furnishing 100 plastic rearload 2-yard commercial refuse containers for the City of Cheyenne, Sanitation Division (Impact Assistance Fund). Motion (per Consent Agenda) carried (accept bid from Nedland Industries, Inc., Ridgeland, Wisconsin, in an amount not to exceed \$50,500.00).

[CA] Consideration of Bid #R-13-14 for furnishing two new 2013-2014 GO-4 parking patrol vehicles for the City of Cheyenne, Parking Division (Impact Assistance Fund). Motion (per Consent Agenda) carried (accept bid from Williams Equipment, LLC, Henderson, CO, in an amount not to exceed \$62,426.00).

[CA] Consideration of Bid #R-14-14 for furnishing three new 2014-2015 all wheel drive small sports utility vehicles for the Engineering Department (1% Specific Purpose Sales & Use Tax, Solid Waste Management Funds, Insurance Claims) -- referred to Finance Committee.

[CA] Consideration of Bid #M-18-14 for a contract between the City of Cheyenne, 1% Construction Division, and S&S Builders, LLC for the FY 2014 Concrete for Street & Alley Project (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-19-14 for a contract between the City of Cheyenne, 1% Construction Division, and STC Construction Co., Inc. for the Yellowstone Road Wear Course Project (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-20-14 for an enterprise Ethernet Wide Area Network connection for the Information Technology Division to provide appropriate network bandwidth for the new phone system and to replace existing data connections (Special Distribution fund) -- referred to Finance Committee.

Re-Appointments of John M. Jolley and David A. Pulley, to the International Fire Code Board of Appeals. Ms. Broyles moved to approve, seconded by Mr. Brown. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Under other business, the following individuals expressed concerns and dissatisfaction with the upcoming change in Sanitation’s automated solid waste collection services for residential containers which involves changing the pick-up location from alleys to street curbside collection points in certain areas within the City: Major Dorr, Kevin Robinett, Mary Liz Langley, Jeannine Melka, Jan Nelson-Schroll, Jane Robinett, Larry Melka, Larry and Peggy Rosentreter, Betty Sue Allen, Pete Laybourn and Kevin Vance. Topics presented included: Sanitation’s study and analysis

of pick-up routes; beautification; curbside collections posing a hardship for senior citizens and handicapped individuals; collection efficiencies; fairness and objectivity in determining collection points; property damage occurring due to garbage trucks negotiating alleys, possible solutions to retain alley pick-ups; previous resolution on the topic that failed adoption in 2012; concerns with container storage site availability in certain neighborhoods and timely retrieval of containers from streets; image and property values; solid waste fee study and potential enterprise budget fund for Sanitation and cost of Sanitation's new GPS system. During comments and pursuant to public inquiry regarding the methodology in not presenting the operational change in the form of a resolution, Dan White, City Attorney, advised that due to potential attorney-client conflict he would decline to publicly discuss the matter at this time. Information on the purpose of collection point changes and response to comments/inquiries posed by speakers and members of the governing body were provided by Vicki Nemecek, Assistant Director of Public Works, and Dennis Pino, Director of Sanitation. Discussion of the topic by members of the governing body followed and included inquiries affiliated with concerns that had been raised; postcards advising of the upcoming change that had been sent by the City; route efficiencies; Sanitation drivers' input on safety concerns and problems with maneuvering Sanitation trucks in alleys; Sanitation staff collection assistance and efforts; GPS programming; impact fee study; alley encroachments; driver training, and operational issues. During discussion a letter from Jim Rose, requesting reconsideration of discontinuing alley collections, was read into the record by Mr. Allen. Mayor Kaysen expressed appreciation for the public's comments and advised the topic would be reviewed. Ms. Nelson-Schroll commented that a valuable piece of information would be a one-page financial synopsis of Sanitation income and expenses for the past year, and requested she be provided with the information.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:28 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
April 24, 2014